

more liberal principles than uses formerly were. In reference to this point, and also to the question, whether the trustee could hold against the person attainted himself if subsequently pardoned, Sir Thomas Clarke said, "The detaining the estate against the Crown where the *cestui que trust* dies without leaving a relation was different from detaining it against the *cestui que trust* himself. The Court would go as far as it could, and he thought the trustee would be estopped from setting up such a claim" (c). Lord Mansfield said, "He could not resolve the case upon principle, for he could find no clear and certain rule to go by" (d). But Lord Henley agreed with Sir Thomas Clarke, and asked, "If the King thinks proper to pardon the felon, what hinders him from suing his trustee? — what hinders him from instantly assigning his trust for the benefit of his family" (e).

22. **Whether the author of the trust can assert a claim.** — A question was put by Lord Mansfield in *Burgess v. Wheate*, but was neither answered at the time, nor received any notice from the bench afterwards, viz. whether the right to the estate might not, in particular cases, result to the *author* of the trust (f). As, if A. infeoffed B. and his heirs, in trust for C. and his heirs, and C. [before the 14th August, 1884, died] without heirs, could the equitable interest result in favour of A.? Such a case has never occurred, and there is no authority upon the subject; but it seems anomalous that a trust can under any circumstances result when the whole beneficial interest has been once parted with.

23. **Trustee cannot come into a court of equity for his own benefit.** — As the trustee when he can claim in these cases advances not a positive, but merely a negative right, he has no ground for coming into a court of equity for the establishment of his right (g). Thus, where A. devised a copyhold estate to B. and his heirs in trust for C. and his heirs, and C. died without heirs, and then B. died, having

(c) 1 Eden, 210.

(d) Id. 236; and see Id. 184.

(e) Id. 255.

(f) Id. 185. As in a gift of land in fee to a corporation, and the cor-

poration is dissolved or ceases, Co. Lit. 13 b.

(g) See Id. 212; and see *Onslow v. Wallis*, 1 Mac. & G. 506.